

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

12. JESSICA GAIL SPEARS V. BRIAN DAVID SPEARS

PFL20190720

On January 12, 2026, Respondent filed a Request for Order (RFO) to end spousal support. He filed a Declaration of Respondent and his Income and Expense Declaration concurrently therewith.

There is no Proof of Service for the moving papers, however Petitioner filed and served her Responsive Declaration to Request for Order on March 9th thereby waiving any defect in service. She filed her Income and Expense Declaration and her Memorandum of Points and Authorities concurrently therewith.

This is a post-judgment request to modify spousal support orders and as such the court is required to take evidence on, and address, the Family Code § 4320 factors. The parties are ordered to appear to select trial and Mandatory Settlement Conference dates.

TENTATIVE RULING #12: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. TODD STANLEY V. HANNAH COLE

24FL0221

On January 14, 2026, Petitioner filed a Request for Order seeking custody and visitation orders, a stay on proceedings, and “correction and clarification of the record.” On January 21st he filed another RFO, this time seeking reconsideration of the court’s prior orders. Both RFOs were served on March 3rd along with the Notice of Tentative Ruling and a blank FL-320.

Respondent filed an RFO on February 2nd seeking to have Petitioner deemed a vexatious litigant. The RFO and all other required documents were served on February 4th.

Respondent’s Objections to Declaration and Exhibits was filed and served on March 13th along with her Responsive Declaration to Request for Order.

On March 23rd, Petitioner filed a Supplemental Declaration of Todd Stanley in Support of Request for a Stay Pending Appeal and Reconsideration, and in Opposition to Objections, Motion to Strike and Vexatious Litigant Request. It is unclear to the court if this is intended to be a Responsive Declaration or a Reply Declaration; regardless, it is untimely. Civil Procedure section 1005(b) states all opposition papers are to be filed no later than nine court days prior to the hearing and all reply papers are to be filed at least five court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 13th the last day to file a Responsive Declaration and March 19th the last day to file a Reply declaration. Additionally, all Responsive Declarations are required to utilize the mandatory FL-320 form, which Petitioner has not done. For the foregoing reasons the court has not read or considered Petitioner’s March 23rd declaration.

Petitioner’s RFOs

Petitioner is requesting the following: (1) stay all relocation orders and enforcement dates pending appellate review of the December 29, 2025 order; alternatively, extend the January 29, 2026 relocation date to no earlier than May 7, 2026; (2) correct and clarify the record regarding issues affecting Family Code § 3044 and the court’s best interest findings; and (3) reconsider the court’s January 14, 2026 ruling denying Petitioner’s ex parte request.